

Defendants argue that this claim fails because it sounds in negligence and there is no liability for public entities for negligence in the absence of a special relationship between the plaintiff and the public entity. (Demurrer, pp. 14-15.)

Plaintiff argues that Defendants did not establish that a public entity's omission to do something it voluntarily agreed to cannot support a gratuitous undertaking theory and that requiring the facility to provide confirmation of insurance coverage within seven days of the annual site inspection created a duty to ensure proof was given. (Opposition, p. 4.)

On reply, Defendants argue that this claim is unsupported by any legal authority and that it sounds in negligence but is unsupported by any statute. (Reply, p. 6.) Defendants argue that Plaintiff has not shown how Defendants agreed to voluntarily undertake to ensure that licensees have insurance.

In *Morgan v. County of Yuba* (1964) 230 Cal.App.2d 938, the court addressed a claim of gratuitous undertaking against a county based on allegations that a sheriff informed a woman that he would notify her if a person they arrested got out on bail—the sheriff did not do this and the woman was murdered. (*Id.* at p. 941.) In an action by the woman's children, the court held that "We have shown above that reliance upon the promise is a necessary element of the cause of action and in the case at bench reliance has not been pleaded. It is not alleged that the promise made created an expectation of fulfillment; nor is it alleged that but for such reliance and expectation, plaintiffs could and would have taken appropriate measures themselves against Ashby's threatened assault." (*Id.* at p. 945.)

Here, Plaintiff similarly has alleged no promise of Defendants to Plaintiff relating to the insurance requirement and has not shown any special relationship between Plaintiff and Defendants. The transaction between Walnut Creek Willows and Defendants cannot be construed to be a promise by Defendants to Plaintiff.

The Court **sustains** the demurrer to the second cause of action for gratuitous undertaking.

Ruling

Based on the analysis above, the Court **OVERRULES** Defendants' demurrer based on failure to make a timely government claim and **SUSTAINS** the demurrer to the first and second causes of action for failure to state facts sufficient to constitute a cause of action. Plaintiff may file and serve a second amended complaint within 15 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC, rule 3.1320(g).)

17. 9:00 AM CASE NUMBER: C25-02567
CASE NAME: ABDUL LATIFI VS. SAMMAH ENTERPRISE INC,
BE RELIEVED AS COUNSEL FOR PLTF
FILED BY:
TENTATIVE RULING:
See Line 14.

18. 9:00 AM CASE NUMBER: C25-03757

CASE NAME: CATHAY BANK, VS. CHRISTINA SEELYE

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: SEELYE, CHRISTINA

TENTATIVE RULING:

This motion **continued** by the Court to October 21, 2026 at 9:00 a.m. Briefing is closed. No appearance is required at the hearing on September 9, 2026.

19. 9:00 AM CASE NUMBER: C26-00271

CASE NAME: EUNA EIM VS. JOSE LOPEZ

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: LOPEZ, JOSE

TENTATIVE RULING:

Before the Court is a demurrer to the complaint. For the reasons set forth, the Court rules as follows: general demurrer to the seventh cause of action is **sustained, with leave to amend**, and all other demurrers are **overruled**, as set forth below.

Background

Plaintiff Euna Eim alleges that she is a tenant conducting a Korean barbecue restaurant business in Units D and E (the "Premises") of the property located at 1450 Monument Boulevard (the "Property"). (Compl. ¶¶ 1, 7.) She alleges that defendant Jose Lopez is the "landlord" of the Premises, and defendant Los Hermanos Lopez, LLC is the owner of the Property. (Compl. ¶ 2; *but see* Compl. ¶ 7 [alleging Lopez and Los Hermanos are both the landlords].) She alleges there was a "first" lease dated in 2017 and then a second lease dated January 1, 2022 between Plaintiff and Los Hermanos, a copy of which is attached as Exhibit A to the complaint (the "Lease"). (Compl. ¶ 8 and Exh. A.)

Eim alleges that in 2012, she took over a portion of Unit C of the Property which was leased to a market with that portion being used as a restaurant pursuant to a "sublease contract." (Compl. ¶ 9.) She alleges the landlord "subdivided" the portion of Unit C she took over under the sublease ("subdivided Unit C") without the actual square footage of subdivided Unit C being stated. (Compl. ¶ 9.) She alleges that the landlord issued to Eim and the market monthly invoices for rent and related charges for the subdivided Unit C between 2013 and 2025, copies of some of which she attaches to the complaint collectively as part of Exhibit B. (Compl. ¶ 10 and Exh. B [invoices naming Korean Market and Korean BBQ, *see, e.g.*, pp. 2, 3].)

Plaintiff alleges in 2016, the landlord offered a new lease directly with Plaintiff. (Compl. ¶ 13.) She alleges that the October 2016 invoice (invoice dated 10/10/2016 included in Exh. B) billed a "flat" CAO (common area operating expense) fee of \$1,097.00 plus a separate line item for the PGE expense, as reflected on the face of the invoice cited. (Compl. ¶¶ 13, 14 and Exh. B, p. 5.) She alleges the landlord started including both the flat CAO and line items for insurance, taxes, and PG&E on the invoices starting with the November 2016. (Compl. ¶ 14 and Exh. B, p. 7.) She alleges the landlord "defrauded" her by "double" charging the CAO and the individual line items since November 2017.